

CHAPTER 21.

An Act to remove doubts as to the effect of subsection (2) of section forty-two of the Agricultural Holdings Act, 1908, and the enactments re-enacted in that subsection.
[14th February 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For removing doubts as to the effect of subsection (2) of section forty-two of the Agricultural Holdings Act, 1908, and any enactment which is re-enacted by that subsection, it is hereby declared that a tenancy from year to year under a contract of tenancy current on the first day of January, eighteen hundred and ninety-six, shall not be deemed to have been determined thereafter by virtue of any provision contained in section sixty-one of the Agricultural Holdings (England) Act, 1883, and the said subsection shall be repealed from the words " Provided that " to the end of the subsection.

Removal of doubts as to effect of 8 Edw. 7. c. 28. s. 4. (2), &c.

46 & 47 Vict. c. 61.

(2) This Act shall apply to any claim for compensation which has not before the passing of this Act been determined by any judgment or order of a court of competent jurisdiction or award or agreement, whether the improvement to which the claim relates was made or begun before or after the commencement of the Agricultural Holdings Act, 1908.

2. This Act may be cited as the Agricultural Holdings Act, 1913, and the Agricultural Holdings Act, 1908, and this Act may be cited together as the Agricultural Holdings Acts, 1908 and 1913.

Short title.

CHAPTER 22.

An Act to amend the Aerial Navigation Act, 1911.
[14th February 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The purposes for which a Secretary of State may make orders prohibiting the navigation of aircraft over prescribed areas under the Aerial Navigation Act, 1911, shall include the purposes of the defence or safety of the realm, and, where an order is made for those purposes, the area prescribed may include the whole or any part of the coastline of the United Kingdom and the territorial waters adjacent thereto.

Extension of power of Secretary of State to regulate aircraft. 1 & 2 Geo. 5. c. 4.

(2) The power of the Secretary of State under the said Act shall include power by order to prescribe the areas within which aircraft coming from any place outside the United Kingdom are to land and the other conditions to be complied with by such aircraft, and, if any person contravenes any of the provisions of any such order, he shall be guilty of an offence under the said Act, unless he proves that he was compelled to do so by reason of stress of weather or other circumstances over which he had no control.

Power to
compel com-
pliance when
aircraft dis-
obeys signals.

2. If an aircraft flies or attempts to fly over any area prescribed under this Act for the purposes of the defence or safety of the realm, or, in the case of an aircraft coming from any place outside the United Kingdom, fails to comply with any of the conditions as to landing prescribed by an order under the last foregoing section, it shall be lawful for any officer designated for the purpose by regulations made by the Secretary of State, to cause such signal as may be prescribed by those regulations to be given, and, if after such signal has been given the aircraft fails to respond to the signal by complying with such regulations as may be made by the Secretary of State prescribing the action to be taken on such a signal being given, it shall be lawful for the officer to fire at or into such aircraft and to use any and every other means necessary to compel compliance, and every and any such officer and every other person acting in his aid and by his direction shall be and is hereby indemnified and discharged from any indictment, penalty, action, or other proceeding for so doing.

Short title.

3. This Act may be cited as the Aerial Navigation Act, 1913; and the Aerial Navigation Act, 1911, and this Act may be cited together as the Aerial Navigation Acts, 1911 and 1913.

CHAPTER 23.

An Act to reduce the number of Principal Clerks of the Court of Session in Scotland. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Reduction in
number of
principal
clerks of
Session.
52 & 53 Vict.
c. 54.

1. From and after the occurrence of a vacancy in the office of principal clerk of Session and notwithstanding anything contained in the Clerks of Session (Scotland) Regulation Act, 1889, or in any other Act, there shall be only one principal clerk of Session, who shall be vested with the powers conferred by or in pursuance of the said Act or any other Act on the two principal clerks of Session, and any references in the said Act or in any other Act to the principal clerks of Session or either of them